蕃地處分趣旨書第一款

Translation

Memorandum

of the principle of the course of actions taken towards the aboriginal territory of Formosa

On the 18th of the tenth month of the fourth year of Meiji, four vessels whose crew were the people of the Yayeyama island, one of the Miyacoshima group belong to the Liou-Kiou isles, sailed from the Napa harbour and encountering a strong gale on the 1st of the eleventh month were driven to the shores of the aboriginal Formosa, on the 6th of the same month, after being tossed about on the sea during several days. The crew, whose member was 66 in whole, landed to these shores but all of them were brutally murdered by the natives, except twelve who were enabled to escape with great hardships. Afterwards, on the 8th of the third month of the sixth year of Meiji, four persons from the village of Kaiwashima, district of Asoye, the province of Bitchiu were driven to the same shores and were robbed of all their clothes and valuables, by the natives for which the Viceroy of Liu-Kiu and the Kenrei (the governor) of Oda Ken reported this circumstances to our government. This was the origin of the despatch of the present expedition to Formosa.

When in the same year Soyeshima Tanetomi, then Minister of the foreign affairs, was sent to the court of Peking as our Ambassador, he was ordered to communicate to the Chinese government, the course

course of actions to be taken towards the Formosan savages. On the 21st of the 6th month, the Chinese Ministers Monama Jon (being both the members of the Tsung-li-yamen) answered him in the Tsung-li-yamen office, that the brutal natives of Formosa were the people wholly beyond the influence of China and over whom the Chinese government have had no jurisdiction or moral control.

The savages of Formosa being thus cruel and brutal, it is not quite improper to be designated by the name of the cannibals by all the nations of the world since several centuries; they have been, as it were, a thorn in the surface of the world which any nation has the right to take

off. The Chinese, through their neighbours, have tolerated, thus far, their wicked actions and there should be no termination to the troubles of all the nations, if Japan would not take their punishment into her hands, especially as her own people were brutally murdered by them, which reason has determind our government to punish them. However, the territory of those savages being contiguous to the Chinese dominion and there being a danger of the breach of the mutual friendship between our government and that of China, in the case of the punishment of the Formosan savages, our government took its importance into consideration and determind to communicate its action to the Chinese local authorities before

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fore sending an expeditionary corps to the aboriginal territory On this, general Saigo Tsukumichi Was appointed the high commissioned and on the 5th of the fourth month of the present year, Was charged by the Imperial order With the three points, first of Which Was to punish those savages for the cruel murder of our people, the second Was the employment of the force in the case of their resistance, according to the exigencies, and the third related to the measures to be taken for preventing the recurrence of the unfortunate affair, in the case of our people ever going to their territorys

Before this, colonel Tsukushima Kinnari had been appointed

the consul at Amoy and been charged to send a dispatch to Riwoner, the Chinese Viceroy of Fokien, addressed to him by the general Saigo, one of Whose purports Was to communicate the anxiety felt by our government, lest the existing good relation between the two governments might be disturbed by the sending of our Expeditionary corps to the savages territories lying contiguous to the Chinese dominion and the other related to the desire of prohibiting the sale of the arms to the savages Whether by the Chinese or foreigners

Upon this, the high commissioner started from Tokei on the 9th of the fourth month With an escort embarked on board of the five vessels, and after arranging the

the preparation at Nagasaki he arrived on the 22nd of the 4th month at Sialiao lying among the aboriginal territories in the south Western part of Formosa. Afterwards, When the soldiers belonging to the escort went to the stone gate in the Boutans territory they were two times suddenly shot by the savages and the several were killed and wounded. This occasioned general outburst of anger among the troops calling for revenge, they attacked the Boutans and killed their chief and his son. The chiefs of the eighteen tribes successively gave in their submission, and the high commissioner, after subjugating the evil tribes and pacifying the good ones, erected a camp at

Kuei-shan.

Before this, Mr. Yamaghiwara Sakimitsu had been appointed the Minister plenipotentiary to the court of Peking and had been bestowed with an Imperial order bearing the date of the 8th of the fourth month, the chief meaning of which was that the dispatch of the present expedition was only to punish the wicked savages and to secure the tranquility for the good people but not to provoke the hostility against the neighbouring countries.

Mr. Yamaghiwara, following the Imperial order, started from Yokei on the 19th of the fifth month and soon arrived at Shanghai, but in the mean while an official dispatch addressed to our minister of the

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the foreign affairs by the Tsung-li-yamen was received by our government. This dispatch chiefly mention that. When in the last year the ambassador Soyeshima came to China, he said he concerning the affairs of Formosa, the Japanese government intends to send a commissioner to the savages, to inform them the desire of the government and that the good relation between the two nations should be always kept undisturbed, but he never said a word about the employment of the force. Moreover, the Treaty provides that the territory of the one nation shall never be invaded by another. But now it has been informed by the foreign Ministers residing at Peking, that Japan

sent an expeditionary corps to Formosa and the same has been mentioned in the several newspaper. If this is truely the case, Why, do you not communicate this to the Chinese government?

However, the receipt of this despatch occuring after the departure of Mr. Yanagihiwara, our government only returned the answer, that respecting the chief points of this despatch the reply shall be given by Mr. Yanagihiwara.

Afterwards Li-ou-nen, the Viceroy of Fokien wrote in reply to Saigo to the effect that the army should be disbanded affirming that the aboriginal Formosa has been within the jurisdiction of China, besides other propositions. Now, the import of this communication differed

pered from what the ambassadors Soyeshima was told of and besides did not agree with the meaning of the communication from Tsung-li-yamen; these things alone were inconsistant enough, but this was not all. At Shanghai, the Minister Yanaghiwara negotiated with Pawi, an assistant Minister under Shin-puan-chin who was on a mission to Formosa; the summary of the communication from the Minister Yanaghiwara was that "Liwonen, the Viceroy of Fookien has written to Saigo to the effect that he should disband the army. Now it is quite true he has the full power so far as the military matters are concerned, seeing he is abroad leading an army, after our government have

decided on this movement, but he is not the proper person who has the power of negotiation. I, therefore, should treat with you in reference to the three Imperial instruction and the measures for the future good, after you shall have had an interview with the ambassador Shin, and trust you will accept my proposition; to which communication Pan consented and besides said in reply that he shall send the answer after he should have informed the ambassador Shin of all this and he promised that on his arrival at Fookien he shall have a conference with Shin and that after obtaining the instruction from Tsung li yamen, at Peking he will not fail to send the answer

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at the first opportunities, but afterwards he would not return any answer and he went immediately to Formosa together with the ambassador Shin and had the direct negotiation with Saigo, contrary to his former promise. When he went to Formosa he was accompanied by Ga-hen-lin, tao-tai of Formosa, and Jui-Boan-tein an assistant of the same and the two French men, Degongae, and Giquel, and at the eight o'clock, A. M. the 22nd of the sixth month, he came to the camp of Saigo the high commissioner at Sialiao on the aboriginal Formosa; at this time he required that China shall dispose of the aboriginal Formosa, but Saigo would not allow

this to be made, then Pan proposed that those three instructions and further measures which he had negotiated with Yanaghiwara at Shanghai shall be settled here, in reply to this proposition Saigo wished that he should be excused from this negotiation this being the proper business of the Minister; then Pan said, all is right. On the same day, Saigo the high commissioner accompanied by Sakuma, a staff officer and other officials and interpreters visited Pan-oi and Ga-hen-lin at their lodging in Ché-gin, when they again and again required that the Chinese government might be allowed to take the future measures for the aboriginal Formosa and Saigo again

refused

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refused this as before. After this time, they have come many times and proposed that the Chinese government shall dispose of the aboriginal Formosa, asserting that it is on the records that the aboriginal portion of Formosa have belonged to China; but Saigo again refused that proposition on principles and said Aboriginal Formosa does not belong to China and the inhabitants of it are independent and responsible for their own acts and consequently the last year When the ambassador Soyeshima was in Peking, the members of Tsung-li-Yamen made the answer that the aboriginal Formosa is beyond the influence of the government and civilization (of China).

I, therefore, have come here to punish those inhabitants according to our imperial command and now the chieftans of many tribes have surrendered themselves and all is peace and I did not expect that you would have come here after the peace was established and have required that China shall dispose of the aboriginal Formosa; is it not too late that you come here now? and I may add that you had rather not interfere in the matter.

Now to return to the circumstances at Shanghai, on the 8th of the 7th month, Shen-pun-gin, the tao-tai, visited the Minister Yanaghiwara and informed him of the summary of result of Pan, mission to Formosa and handed

handed over him a letter from him and made the following statement. "When Pan-oi had an interview with Mr Saigo, the former proposed some things for interests of both countries on which the latter was of the same opinion; upon which to the chieftans of many savage tribes, Pan instructed what they have to do, and received the reiterates of contrition and repentance from them and gave them silver medals, and clothings and when he (Pan) said to Saigo, I think, now that the Bontans have been punished and their chieftan was killed, the obligation of the Japanese government to punish the aboriginal Formosa is all over and how will you go on?

Saigo said in reply that as he has done nearly all things for the aboriginal Formosa and as his army suffer from the intense heat of the sun during this season we shall quite ready to return home at the first command from his government." Which statement Yanagihara found to be full of confusion and inconsistency and sent a letter to him requiring him to fulfil what Pan-oi had promised before.

Moreover, according to a letter from Saigo, Pan said him in the course of their conference of the 22nd of the sixth month, that the Chinese government themselves should take the measures to arrest the Formosan offenders; but Saigo rejected the proposal, saying

saying that, now that our hands having been always put on the natives, the matter was expected to come soon to the end and there was no reason why We should demand any foreign intervention. On this, Pan again said to Saigo, that he having been specially dispatched on the subject from Peking, he wished the matter and the three articles, of which he had been in conference with Yanaghiwara should be decided in some way. But Saigo again, rejected the proposal, on the ground, that he was only to obey the directions from home and that as the negotiation with the Chinese government was not his business, but that of Yanaghiwara, he ought to treat with him. (Yanaghiwara,

this, Pan has fully consented to. But he subsequently wrote to Yanaghiwara, in the same meaning as Shimpingin had before written to him, that the negotiation having been already brought to a satisfactory conclution, he desired him to communicate his government the necessity of the evacuation of Formosan by the troops. Therefore, Yanaghiwara, after replying that his words were widely different from what was said in the letter sent to him by Saigo and blaming his breach of promise quitted Shanghai, and proceeded to Peking, to negotiate directly with the Tsung-li-Yamen. Now, the fact that Pan-ei first treated with Yanaghiwara, subsequently with Saigo, and then again with Yanaghiwara; his words

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were each time contradictory to each other; leads us to suspect that the Chinese policy was to get the delay under the cover of negotiation. We therefore, must arrive to the result by quick decision. Though our object is only to hold up our sovereignty and we do not like to break the friendship with the neighbour; Yet, if he should attempt to remove our troops by force, We must resist it also by force. In this, the plan of our cabinet was in the maturity. And Yanabe Yaichi, the Shito shushi of Gaimusho (an officer of fourth degree in Foreign Department) has been dispatched on the 16th of the 7th month to communicate the plan to Yanaghiwara.

But, our government fearing that Mr. Yanaghiwara having no self deciding power, the negotiation might be unnecessarily delayed; His Excellency Okubo Toshimichi, the Sangi and the Minister of the interior has been appointed Jenken Benli Taisin (ambassador plenipotentiary to the court of Peking) The main objects of his mission is that although Yanaghiwara the Minister plenipotentiary to the court of Peking was ordered to negotiate peacefully with Chinese government, on the Formosan question, the negotiation has been wearing somewhat uneasy appearance. The government, therefore, has appointed a high and confidential officer with the full power, to meet with any commissioner the

Chinese

Chinese Emperor will please to appoint, and to endeavour to bring the matter to a peaceable conclusion, by consigning the conventions they would do between them to a document.

This was made on the 5th of 8th month, on the next day or 6th the ambassador Okubo has put to sea, and embarking on board the "Riojokan" at Nagasaki thence directly proceeded for Peking. Thus, he is now on the point of settling the question by the negotiation with the commissioner of Peking government, according to the Imperial Instruction.

Translation

When on his way to Peking, the Minister Yanagihara stopped at Tsien tien, he had an interview with Li-hung-chang, the viceroy of Pechi-li on the 24th of the seventh month, when the latter made a question, the chief import of which is a follows: (No 2)

"The present expedition of your country to the aboriginal Formosa originated in your contempt for our weakness and was an occasion of our dishonor towards the nations of the world. The aboriginal part of Formosa being subject to us, we have evidently the right to punish the offenders who committed the barbarous actions towards the shipwrecked persons, if your government should have only desired

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